



POLICE DEPARTMENT

July 31, 2019

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In the Matter of the Charges and Specifications :

Case No.

- against - :

2018-19645

Police Officer Sandy Gonzalez :

Tax Registry No. 931697 :

Housing P.S.A. #7 :

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Javier Seymore, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Michael Martinez, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Sandy Gonzalez, while assigned to Housing Borough Manhattan Viper Unit, as the Video Patrol Officer, on or about October 7, 2017, did fail and neglect to properly monitor the video screen and portable radio.

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HOUSING BUREAU CLOSED CIRCUIT
TELEVISION PATROL

2. Said Police Officer Sandy Gonzalez, while assigned to Housing Borough Manhattan Viper Unit, as the Video Patrol Officer, on or about October 7, 2017, did fail and neglect to properly utilize the Pan Tilt Zoom (PTZ) cameras to conduct a minimum of two (2) license plate inquiries per hour, at least sixteen (16) per tour, on vehicles located in areas within the vicinity of the development.

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HOUSING BUREAU CLOSED CIRCUIT
TELEVISION PATROL

3. Said Police Officer Sandy Gonzalez, while assigned to Housing Borough Manhattan Viper Unit, as the Video Patrol Officer, on or about October 7, 2017, did cause false entries in the License Plate Check Log by documenting license plate inquiries said officer did not perform.

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HOUSING BUREAU CLOSED CIRCUIT
TELEVISION PATROL

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 11, 2019. Respondent, through his counsel, entered pleas of Guilty to the subject charges, and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find no mitigation to be warranted, and recommend a penalty of the forfeiture of 20 vacation days and a one-year period of dismissal probation.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent testified that approximately one year before the date of the charged misconduct, he sustained line of duty injuries to his neck and back while breaking up a fight between detained prisoners. At the time of his injuries, he was assigned to patrol duties in the 40th Precinct. The injuries, [REDACTED] according to Respondent, caused him chronic pain, effectively precluding the

performance of enforcement duties. Respondent was placed on limited duty and re-assigned to Housing Borough Manhattan, where he worked a steady midnight tour as the Video Patrol Officer, monitoring VIPER cameras. He took prescribed pain medication when off-duty but refrained from doing so on-duty because the medication made him drowsy.

On October 7, 2018, Respondent asserted that he felt unwell during his tour. He conceded that he missed two significant incidents during his tour which were captured on the video monitors he was assigned to observe; his explanation was that he was probably on a bathroom break or laying prone on the floor in an attempt to alleviate the discomfort in his back. One of the incidents was a physical altercation between two females; the second, an assault on a police officer.

Respondent further conceded that he missed radio calls, one of them a "10-85" call for assistance from the officer who was assaulted on video. Under questioning by the Tribunal, he claimed to have no recollection of whether he checked the portable radio at the beginning of his tour to ensure its operability.

Finally, Respondent admitted that during his tour, he made false entries in police records. He acknowledged that he was obligated to run computer checks on two license plates per hour but opted to record a batch of plates at one time, then falsely claim they had been screened with negative results. Respondent characterized this action as "being lazy."

When asked by the Tribunal whether he ever informed a supervisor that he was unable to perform his duties that tour because of his injuries, Respondent claimed that he had, referencing an earlier request to a lieutenant about a tour change to days, rather than midnights. Respondent asserted that he "couldn't live with himself" if a fellow officer were to be injured because of his inattention to duty that evening.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the

Department on July 22, 2002. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department Advocate has recommended a penalty of the forfeiture of 20 vacation days and one-year period of dismissal probation. Respondent's counsel has argued that the imposition of a one-year period of monitoring would be meaningless because Respondent is already being forced to leave this Department as medically unfit for future service. Respondent's counsel has also argued the penalty recommended by the Department Advocate is based upon an outsized focus on a single tour of duty, compared to the previous 16 years of his service, which was unblemished. I disagree.

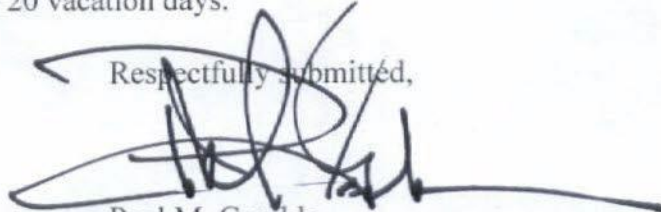
While Respondent's counsel conceded the banality of being assigned to VIPER duty, it cannot be gainsaid that Respondent's assignment as the Video Patrol Officer was simply modern nomenclature for a sentinel, in the traditional sense. His primary duty was to keep watch over his fellow police officers, aided by surveillance cameras and electronic communications devices. Even though he was on limited duty, he had an obligation to inform his superiors if his physical condition precluded him from performing the duties of his assignment. In pointed questioning by the Tribunal, Respondent did not assert that he ever felt so physically challenged by his injuries that he told a supervisor that he could not continue at his post; I do not find his request for a transfer to day tours the same as a declaration that the pain from his injuries was so great that he was in effect, unfit for duty.

In the view of this Tribunal, Respondent effectively quit his post by taking his attention away from the monitors for significant periods of time, either for bathroom breaks or to stretch on the floor. Equally egregious was Respondent's decision to make false entries in Department records because, as he admitted, he was "too lazy" to make license plate checks as directed. This action was a conscious dereliction of his duties, potentially allowing wanted felons and car thieves to escape detection. In so doing, Respondent prioritized indolence over his professional responsibility. This mindset is the antithesis of professionalism and is inconsistent with continued service in this Department.

In previous cases, Respondents have forfeited from 20 to 40 vacation days, followed by a one-year period of monitoring for dereliction of duty and making false or misleading statements (*Disciplinary Case No. 2010-3700* [February 18, 2014][Seven-year police officer with no prior disciplinary record forfeits 40 vacation days and is placed on one year dismissal probation after a mitigation hearing for leaving his traffic post and entering the Brooklyn Family Day Concert without permission or police necessity, taking unauthorized police action by directing the music to be shut off prior to the conclusion of the concert, failing to make entries in his Activity Log, and making misleading statements about his actions at an official Department interview]; *Disciplinary Case Nos. 2016-16784 & 2017-17071 & 17072* [January 14, 2019][Four-year police officer (Respondent 1) with no disciplinary record forfeited twenty (20) vacation days and was placed on one-year dismissal probation for (i) being absent from assignment, without permission or police necessity, to address a personal matter, (ii) using a Department vehicle for personal business, (iii) failing to make required Activity Log entries, (iv) failing to render necessary police service and respond to a radio run in a timely fashion and (v) displaying a Department traffic vest on the dashboard of a private vehicle while it was improperly parked next to a fire hydrant. Co-Respondent, a five-year officer with no disciplinary record forfeited thirty (30) vacation days and was placed on one-year dismissal probation for (i) being absent from assignment, without permission or police necessity, to address a personal matter, (ii) using a Department vehicle for personal business, (iii) failing to make required Activity Log entries, (iv) failing to render necessary police service and respond to a radio run in a timely fashion and (v) being discourteous to civilian members of the service assigned to traffic enforcement]; *Disciplinary Case No. 2016-16285* [December 28, 2017][Thirteen-year sergeant with prior discipline forfeited 20 vacation days and was placed on one year dismissal probation for (i) failing to remain alert and on post while acting as desk officer, (ii) failing to sign in when assuming duties and sign out when leaving the desk area and (iii) making inaccurate or misleading statements at a Department interview]).

Accordingly, I recommend that Respondent be **DISMISSED** from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Administrative Code § 14-115 (d), during which time he is to remain on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. The Court further recommends that Respondent forfeit 20 vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to be "Paul M. Gamble", written over the words "Respectfully submitted,".

Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

Aug 29 2019

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER SANDY GONZALEZ
TAX REGISTRY NO. 931697
DISCIPLINARY CASE NO. 2018-19645

Respondent was appointed to the Department on July 22, 2002. On his last three annual performance evaluations, he received a 3.5 overall rating of "Highly Competent/Competent" in 2016, a 3.0 overall rating of "Competent" in 2015 and a 4.0 overall rating of "Highly Competent" in 2014.

[REDACTED]

Respondent has no formal disciplinary history. In 2014, Respondent was placed on Level I Performance Monitoring for receiving negative performance evaluations. Monitoring ended in 2015.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials